



CHAPTER ccvi.

An Act to authorise the making of tramways and tram-roads in the City of Belfast and in the County of Down and for other purposes. A.D. 1904.
[15th August 1904.]

WHEREAS the making and maintaining of the tramways and tramroads hereinafter described in the city of Belfast and in the county of Down would be of public and local advantage :

And whereas the persons hereinafter named are willing with others at their own expense to construct the said tramways and tramroads on being incorporated into a company for the purpose :

And whereas it is expedient that the corporation of the city of Belfast be authorised to exercise the powers of the Company for the construction and working of the said tramways and tramroads so far as the same are intended to be situate in the city of Belfast on the terms and conditions hereinafter set forth and to make agreements with the Company with respect to the construction leasing working and use of the tramways and tramroads :

And whereas plans and sections showing the lines and levels of the tramways and tramroads authorised by this Act and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Down and are hereinafter respectively referred to as the deposited plans sections and book of reference :

A.D. 1904.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Hollywood Tramways Act 1904.

Incorporation of general Acts.

2. The following Acts and parts of Acts are so far as applicable to and except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act (that is to say) :—

The Companies Clauses Consolidation Act 1845 :

Part I. (relating to cancellation and surrender of shares) and

Part III. (relating to debenture stock) of the Companies Clauses Act 1863 :

The Lands Clauses Acts :

The Tramways (Ireland) Acts :

The Railways Act (Ireland) 1851 :

The Railways Act (Ireland) 1860 :

The Railways Act (Ireland) 1864 :

The Railways Traverse Act 1868 :

The clauses of the Railways Clauses Consolidation Act 1845 with respect to—

(A) Construction of railway ;

(B) Temporary use of lands ;

(C) Working of mines ;

Provided that the Railways Clauses Consolidation Act 1845 shall apply only to so much of the tramroads by this Act authorised as is not laid along a road and for the purposes thereof the tramroads shall be deemed to be railways and the Company shall be deemed to be a railway company. Provided that sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall be read and construed as if the expression “clerks of the district councils within which such parishes are included in Ireland” or the words “clerks of the district councils” had been inserted in those sections in lieu of the expression “the postmasters of the post towns in or nearest to

such parishes in Ireland " or in lieu of the word "postmasters" as the case may be. A.D. 1904.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless varied by this Act or unless there be something in the subject or context repugnant to such construction And in this Act— Interpretation.

"The Company" means the Company incorporated by this Act;

"The tramways" and "the tramroads" and "the undertaking" respectively mean the tramways and tramroads and undertaking by this Act authorised;

"The city" means the city of Belfast;

"The corporation" means the lord mayor aldermen and citizens of the city;

"The road authority" and "the local authority" respectively mean the corporation the county council of Down the Castlereagh Rural District Council and the Hollywood Urban District Council or one of them as the case may require;

"Road" means any carriageway being a public highway and the carriageway of any bridge forming part of or leading thereto;

"Mechanical power" includes steam electrical and every other motive power not being animal power;

The word "engine" includes motor.

4. Henry Harrison Robert Armstrong Mitchell Frank Workman Robert Brown Gawn Grainger Thomas Scott Martin Jonathan Jefferson Thomas Valentine Plaisted McCammon John R. Noble Alexander Anderson William Henry Phillips junior and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purpose of making and maintaining the tramways and tramroads and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Hollywood Tramways Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Company incorporated.

A.D. 1904.

TRAMWAYS AND TRAMROADS AUTHORISED.

Power to
make tram-
ways and
tramroads.

5. Subject to the provisions of this Act the Company may make form lay down work use and maintain the tramways and tramroads hereinafter described in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails works and conveniences connected therewith The tramways and tramroads hereinbefore referred to and authorised by this Act are—

Tramroad No. 1.—A tramroad 1 mile 3 furlongs 0·7 chain or thereabouts in length (partly double and partly single line) of which 5 furlongs 5·2 chains is intended to be laid along roads commencing in Hollywood Road at or about its junction with Belmont Road and terminating in Hollywood Road at the boundary of the city :

Tramroad No. 2.—A tramroad 1 mile 4 furlongs 9·0 chains in length (partly double and partly single line) commencing in Hollywood Road at the termination of Tramroad No. 1 by a junction with the said tramroad and terminating in that road at the southern boundary of the urban district of Hollywood :

Tramway No. 3.—A tramway 6 furlongs 8·3 chains or thereabouts in length (partly double and partly single line) commencing in Hollywood Road at the termination of Tramroad No. 2 by a junction with the said tramroad and terminating in that road at the northern boundary of the urban district of Hollywood :

Tramway No. 3A.—A tramway 7·1 chains or thereabouts in length (partly double and partly single line) commencing in High Street Hollywood at a point 14 yards or thereabouts measured in a south-westerly direction from the junction of that street with Sullivan Place and terminating in the plot of land situate on the south-west side of Sullivan Place at a point 120 yards or thereabouts measured in a north-westerly direction from the junction of Sullivan Place with High Street aforesaid :

Tramway No. 4.—A tramway 3 furlongs 8·4 chains or thereabouts in length (partly double and partly single line) commencing in Bangor Road at the termination of Tramway No. 3 by a junction with the said tramway

and terminating at or about the junction of that road with the road leading to Marino Coast Guard Station: A.D. 1904.

Tramway No. 5.—A tramway 4 furlongs 5·3 chains or thereabouts in length (partly double and partly single line) commencing in High Street Hollywood at a point 25 yards or thereabouts measured in a south-westerly direction from its junction with Church Street and terminating in Demesne Road at a point 40 yards or thereabouts measured in a southerly direction from the entrance gate to the house known as Hillside :

Tramroad No. 6.—A tramroad 7 furlongs 9·0 chains or thereabouts in length (partly double and partly single line) of which 1 furlong 9·0 chains is intended to be laid along roads commencing at the termination of Tramway No. 5 by a junction with the said tramway and terminating in Hollywood Road at a point 25 yards or thereabouts measured in a south-westerly direction from its junction with Jackson's Lane by a junction with Tramroad No. 2.

6. Notwithstanding anything in this Act contained or shown upon the deposited plans the Company shall not lay Tramroad No. 2 elsewhere than along the roads. Tramroad No. 2 to be on roads.

7. Subject to the provisions of this Act the Company may in the lines and situations and according to the levels shown on the deposited plans and sections make the street and road works shown on those plans and hereinafter described (that is to say):— Power to make street and road works.

(A) An alteration in the levels of the road leading from the Hollywood Road on the east side thereof at a point opposite the lodge entrance to the house known as Glendhu for a length of 75 yards or thereabouts measured in a westerly direction from the centre line of Hollywood Road :

(B) A setting-back of the frontage line of road at the southern corner of the junction of Jackson's Lane with Hollywood Road commencing in Jackson's Lane at a point about 12 yards measured in an easterly direction from the said corner and terminating in Hollywood Road at a point about 15 yards measured in a southerly direction from the said corner.

A.D. 1904.

Limits of
deviation for
street and
road works.

8. The Company in the construction of the street and road works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from the limits shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

As to repair
of altered
streets and
roads.

9. All streets and roads altered by the Company under the powers of this Act shall (subject to the provisions of this Act as to the repair by the Company of part of roads in which tramways are laid) be and continue vested in and repairable by and under the control and management in all respects of the authority having now the control and management of such roads or streets.

Power to
alter drains
pipes &c. for
street and
road works.

10. The Company may for any purpose in connection with the street and road works by this Act authorised raise sink or otherwise alter the position of any sewer drain channel water pipe gas pipe or hydraulic pipe belonging to or connected with any house or building adjoining or near to such works and also any main or other pipe for carrying a supply of gas or water or for hydraulic purposes or any pipe tube wire or apparatus laid down or used for telegraphic telephonic or electric purposes and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company or person who suffers damage by such alteration :

Provided that the Company shall not raise sink or otherwise alter or interfere with any pipe tube wire or other apparatus laid down or used for telegraphic or telephonic purposes by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 Provided also that nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply :

Provided also that no sewer drain channel pipe tube wire or apparatus belonging to the corporation or the Castlereagh Rural District Council shall be raised sunk or otherwise altered or interfered with except with the consent of the corporation or the said council as the case may be and to the satisfaction of

the city surveyor or the surveyor to the said council as the case may be but such consent shall not be unreasonably withheld. A.D. 1904.

11. If any work authorised by this Act involves the removal or alteration of any post office letter-box the Company shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-General may remove or alter the box as he may think fit and the Company shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration. As to removal of letter boxes.

LANDS.

12. Subject to the provisions of this Act the Company may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required for the purposes of this Act. Power to acquire lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to take easements &c. by agreement.

15. Subject to the provisions of this Act the Company may on the lands shown upon the deposited plans and described in the Schedule to this Act erect maintain work and use a station or stations for producing generating transforming transmitting conveying and distributing electrical energy or power with all necessary dynamos batteries accumulators storage motors generators transformers engines boilers pipes pumps machinery plant works buildings appliances apparatus and conveniences for that purpose and may produce generate transform transmit convey and distribute such energy or power for the purpose of working the tramways and tramroads or any tramways tramroads or Lands for generating stations.

A.D. 1904. light railways of or leased to or worked or run over by the Company.

Power to acquire additional lands by agreement.

16. In addition to the other lands which the Company are by this Act authorised to purchase and acquire they may by agreement purchase or take on lease and acquire for the purposes of their undertaking and may hold any lands not exceeding ten acres and they may on such lands and on any other lands purchased or acquired under the authority of this Act (not being land acquired by them for the purpose of widening any street or road) erect construct maintain and work generating and other stations with all necessary works buildings appliances apparatus and conveniences but nothing in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so used.

Restriction on taking houses of labouring class.

17. The Company shall not under the powers of this Act purchase or acquire in any urban district ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board for Ireland ten or more houses in any urban district which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board for Ireland by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if they think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

18. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain houses and properties shown on the deposited plans may be sufficient for the purposes of the Company and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses and properties numbered on the deposited plans 11 12 13 14 and 15 in the townland and urban district of Hollywood and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

A.D. 1904.

Owners may be required to sell parts only of certain properties.

CONSTRUCTION AND MAINTENANCE.

19. The Company from time to time for the purpose of making forming laying down maintaining and renewing the tramways and tramroads or any part or parts thereof respectively may open and break up any road subject to the following regulations:—

Power to break up roads &c.

- (1) The Company shall give to the road authority notice of their intention specifying the time at which they will begin to do so and the portion of road proposed to be opened or broken up such notice to be given seven days at least before the commencement of the work:
- (2) The Company shall not open or break up or alter the level of any road except under the superintendence and to the reasonable satisfaction of the road authority unless that authority refuses or neglects to give such superintendence at the time specified in the notice or discontinues the same during the work:

A.D. 1904.

(3) The Company shall pay all reasonable expenses to which the road authority is put on account of such superintendence:

(4) The Company shall not without the consent of the road authority open or break up at any one time a greater continuous length than a quarter of a mile of any road and shall leave an interval of at least a quarter of a mile between any two places at which they may open or break up the road.

Approval by
Board of
Trade of
mode of con-
structing
tramways
and tram-
roads.

20. The Company shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down or renewing any of the tramways or tramroads lay before the Board of Trade a plan showing the proposed mode of constructing laying down and renewing such tramways or tramroads where laid along a road and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down and renewal of any such portion of the tramways or tramroads until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Completion
of work and
reinstatement
of road.

21. When the Company have opened or broken up any portion of any road or the footway thereof they shall be under the following further obligations namely:—

(1) They shall with all convenient speed (and within four weeks unless the road authority otherwise consents in writing) complete the work on account of which they opened or broke up the same and (subject to the formation maintenance or renewal of the tramway) fill in the ground and make good the surface and to the satisfaction of the road authority restore the portion of the road or the footway thereof to as good condition as that in which it was before it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby:

(2) They shall in the meantime cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night:

(3) They shall bear or pay all reasonable expenses of the repair of the road or the footways thereof for six months after the same is restored as far as those expenses are increased by the opening or breaking up: A.D. 1904.

(4) If the Company fail to comply in any respect with the provisions of this section so far as the same are applicable within the city they shall for every such offence (without prejudice to the enforcement by specific performance of the requirements of this Act or to any other remedy against them) be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for each day during which any such failure continues after the first day on which such penalty is incurred and any such penalty shall go and belong to the corporation and shall form part of the funds applicable to the maintenance of the street or road.

If any difference arises under this section as to the reasonable satisfaction of the road authority or as to the reasonable expenses to be paid by the Company that difference shall be referred to arbitration under this Act.

22. Any paving metalling or material excavated by the Company in the construction of the tramways or tramroads where laid along a road or in the exercise of the powers of this Act from any road under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the reinstatement of the road and the maintenance for six months after completion of any of the tramways or tramroads within the district of such road authority of so much of the roadway on either side of such tramways or tramroads as the Company are by this Act required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may

Application of road materials excavated in construction of works.

A.D. 1904. — be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by an arbitrator to be nominated by the Board of Trade on the application of either party.

Repair of
part of road
where tram-
way or tram-
road is laid.

23. The Company shall at their own expense at all times maintain and keep in good condition and repair so much of the surface of any road whereon any of the tramways or tramroads is laid as is comprised in the gauge of the tramway and tramroad and one foot outside of each rail.

Road autho-
rity and
Company
may contract
for repairing
roads.

24. The Company on the one hand and the road authority on the other hand may from time to time enter into and carry into effect and from time to time alter renew or vary contracts agreements or arrangements with respect to the keeping in repair of the whole or any portion of the roadway of any road on which the Company shall lay the tramways or tramroads and the proportion to be paid by either of them of the expense of such paving and keeping in repair.

As to elec-
trical works
&c.

25.—(1) Subject to the provisions of this Act the Company may construct lay down erect maintain renew and repair on in under or over the surface of any road and the footways thereof in which the tramways or tramroads will be situate or in which it may be necessary so to do in order to form connections between such tramways or tramroads and any generating station and on in under or over any lands acquired by the Company under this Act cables electric mains wires conductors posts tubes boxes apparatus and appliances and may make and maintain openings and ways for the purpose of working the said tramways and tramroads by electrical power and may for that purpose subject to the provisions of this Act open and break up any such road and the footways thereof and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

Power to
attach
brackets &c.
to buildings.

26. The Company may with the consent of the owner of any building attach to that building such brackets wires and

apparatus as may be required for the working by electrical power of the tramways and tramroads Provided that— A.D. 1904.

- (1) Where in the opinion of the Company any consent under this section is unreasonably refused they may apply to any two justices sitting at petty sessions who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the application are to be paid :
- (2) Any consent of an owner and any order of justices under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the justices shall have the same powers as under proviso (1) :
- (3) The owner may upon giving not less than one month's notice in writing to the Company require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

27. The Company may cut and lop any trees planted in or near any highway along which the Company's tramways or tramroads are laid which may in any way interfere with the construction or working of such tramways or tramroads or the works and apparatus connected therewith or with the clear and safe passage of the carriages and the passengers thereon doing no unnecessary damage to the trees and making compensation to any persons who may sustain damage by the exercise of the powers conferred by this section. Power to lop trees.

A.D. 1904.

Power to
make addi-
tional cross-
overs and to
double tram-
way and
tramroad
lines.

28.—(1) The Company may subject to the provisions of this Act with the consent of the Board of Trade and of the road authority make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways and tramroads or for providing access to any warehouses stables or carriage-houses or works of the Company.

(2) Notwithstanding anything shown on the deposited plans the Company may with the consent of the Board of Trade and of the road authority make such alterations in the position of any tramway or tramroad where laid upon a road as may be found necessary or convenient and may with the like consents lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways or tramroads and if at any time the road in which any tramway or tramroad or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Company may with the like consents construct such tramway or tramroad or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit provided that such position shall have been previously approved by the road authority.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

Temporary
tramways or
tramroads
may be
made when
necessary.

29. When by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways or tramroads are or is laid it shall in the opinion of the road authority be necessary or expedient temporarily to remove or discontinue the use of such tramway or tramroad or any part thereof the Company may with the consent of the road authority

and subject to such conditions and in accordance in all respects with such regulations as the road authority may from time to time make construct in the same or any adjacent road and with the like consent subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or tramroad in lieu of the tramway or tramroad or part of the tramway or tramroad so removed or discontinued. A.D. 1904.

If any difference arises between the Company and the road authority with respect to the reasonableness of any conditions or regulations or with respect to the necessity for or the mode of constructing any temporary tramway or tramroad under the authority of this section the same shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

30. The Company may with the consent of the road authority increase the roadway of any road in which any of the tramways or tramroads are to be laid to such extent as may be necessary to leave a space of nine feet and six inches between the outside of the footpath on each or either side of such road and the nearest rail of the tramway or tramroad by reducing the width of the footpath on each or either side of such road Provided that no footpath be so reduced in width as to be less than six feet wide. Company may reduce footpath.

31. The tramways and tramroads shall be constructed on a gauge of four feet eight and a half inches and where a double line of rails is laid down there shall be a sufficient distance between the lines of tramway or tramroad to allow a space of not less than fifteen inches between the widest carriages to be used on the tramways and tramroads when passing each other thereon. Gauge.

32. Subject to the provisions of this Act the Company shall have the exclusive use of the tramways and tramroads where laid upon a road for carriages with flange or other wheels suitable only to run on the rails of the tramways and tramroads. Company to have exclusive use of tramways and tramroads for carriages with flange wheels.

33. The rails of the tramways and of the tramroads where laid along any road shall be such as the Board of Trade may approve. As to rails of tramways and tramroads.

34. The Company shall at all times maintain and keep in good condition and repair to the reasonable satisfaction of the Penalty for not maintaining rails

A.D. 1904.
in proper
order.

road authority and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and of the tramroads where laid along or across a road and the substructure upon which the same rest and in case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of any district in which the tramways or tramroads or any portion thereof are or is situate or by such road authority that the Company have made default in complying with the provisions in this section contained the Board of Trade may if they think fit direct an inquiry by an officer to be appointed by the said Board such inquiry to be conducted in such manner as the said Board shall direct and if the said Board certify under the hand of their secretary or assistant secretary that the default mentioned in such representation has been proved to the satisfaction of the said Board the Company shall make good the default in the manner and within the time specified in such certificate and if they fail so to do shall be subject to a penalty not exceeding five pounds for every day they shall continue in default after notice to them of the making of such certificate and the contents and requisitions thereof.

Provisions as
to gas and
water com-
panies.

35. For the purpose of making forming laying down maintaining repairing or renewing any of the tramways or tramroads where laid in a road or any works connected with the tramways or tramroads on in or under the footways of any road the Company may from time to time where and as far as it is necessary or may appear expedient for the purpose of preventing frequent interruption of the traffic by repairs or works in connection with the same alter the position of any mains or pipes for the supply of gas or water or any tubes wires or apparatus for telegraphic telephonic or other purposes subject to the provisions of this Act and also subject to the following restrictions (that is to say):—

- (1) Before laying down or altering any part of the tramway or tramroad or any works connected therewith in a road or the footways thereof in which any mains or pipes tubes wires or apparatus (in this section referred to as “mains or apparatus”) may be laid the Company shall whether they contemplate altering the position of any mains or apparatus or not give seven days’ notice to any company persons or person to whom such mains or apparatus may belong or by whom they are controlled (hereinafter in this section

referred to as "the owners") of their intention to lay down or alter such part of the tramway or tramroad or the works connected therewith and shall at the same time deliver a plan and section of the proposed work. If it should appear to the owners that the laying down or alteration of the tramway or tramroad or the works connected therewith as proposed would endanger any such mains or apparatus or interfere with or impede the supply of water or gas or the telegraphic telephonic or other communication the owners may give notice to the Company to lower or otherwise alter the position of the said mains or apparatus in such manner as may be considered necessary. All alterations to be made under this section shall be made with as little detriment and inconvenience to the owners or to the inhabitants of the district as the circumstances will admit and under the superintendence of the owners if they or he think fit to attend after receiving not less than forty-eight hours' notice for that purpose which notice the Company are hereby required to give: A.D. 1904.

- (2) The Company shall not remove or displace any mains or apparatus or other works belonging to or controlled by the owners or do anything to impede the passage of water or gas or the telegraphic telephonic or other communication into or through such mains or apparatus without the consent of the owners or in any other manner than such company or person shall approve until good and sufficient mains or apparatus and other works necessary or proper for continuing the supply of water or gas or telegraphic telephonic or other communication as sufficiently as the same was supplied by the mains or apparatus proposed to be removed or displaced shall at the expense of the Company have been first made and laid down in lieu thereof and ready for use and to the satisfaction of the owners:
- (3) The Company shall not lay down any such pipes contrary to the regulations of any Act of Parliament relating to the owners or relating to telegraphs:
- (4) The Company shall make good all damage done by them to property belonging to or controlled by the owners

A.D. 1904.

and shall make full compensation to all parties for any loss or damage which they may sustain by reason of any interference with such property or with the private service pipes or wires of any person supplied by the owners with water or gas or telephonic or telegraphic communication :

- (5) If by any such operations as aforesaid the Company interrupt the supply of water or gas in or through any main or main pipe they shall be liable to a penalty not exceeding twenty pounds for every day upon which such supply shall be so interrupted :
- (6) Any works to be executed by the Company in pursuance of the provisions of this Act in relation to the lowering or altering the position of any such mains or apparatus shall be executed by the Company or if the Company so require by the owners who shall commence and complete the same with all reasonable despatch Provided that all such lowering or alterations shall be at the reasonable expense of the Company :
- (7) Any difference which may arise between the Company and the owners under this section shall be referred to arbitration under this Act.

Alteration of
telegraph
lines of Post-
master-Gener-
al.

36. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply to any such alteration.

For protec-
tion of ,
sewers &c.

37. Where the tramways or tramroads interfere with any sewer drain watercourse subway defence or work or will affect the sewerage or drainage of any district the Company shall not commence any tramways or tramroads until they shall have given to the proper authority fourteen days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of such authority with all necessary particulars relating thereto nor until such authority shall have signified their approval of the same unless such authority do not signify their approval disapproval or other directions within fourteen days after service of the said notice and particulars as aforesaid and the Company shall comply with and conform to all reasonable

directions and regulations of the said authority in the execution of the said works and shall provide by new altered or substituted works in such manner as such authority shall reasonably require for the proper protection of and for preventing injury or impediment to the sewers and works hereinbefore referred to by or by reason of the tramways or tramroads and shall save harmless the said authority against all and every the expense to be occasioned thereby and all such works shall if the Company so require be done by the said authority or if done by the Company be done under the direction superintendence and control of the engineer or other officer or officers of the said authority if such superintendence shall be given at the reasonable costs charges and expenses in all respects of the Company and when any new altered or substituted work as aforesaid or any works or defence connected therewith shall be completed by or at the costs charges or expenses of the Company under the provisions of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the said authority and be maintained by them as any sewers or works If any difference arises under this section between the Company and the said authority that difference shall be referred to arbitration under this Act.

A.D. 1904.

38. Nothing in this Act shall take away or abridge any power to open or break up any road along or across which any of the tramways or tramroads is laid or any other power vested in any local authority or road authority for any of the purposes for which such authority is respectively constituted or in any company body or person for the purpose of laying down repairing altering or removing any pipe for the supply of gas or water or any tubes wires or apparatus for telegraphic or other purposes but in the exercise of such power every such local authority road authority company body or person shall be subject to the following provisions (that is to say):—

Rights of
authorities
and com-
panies &c.
to open
roads

- (1) They shall cause as little detriment or inconvenience to the Company as circumstances admit:
- (2) Before they commence any work whereby the traffic on the tramway will be interrupted they shall give to the Company notice of their intention to commence such work specifying the time at which they will begin to do so such notice to be given eighteen hours at least before the commencement of the work except in the

A.D. 1904.
—

case of emergency when they shall give notice as soon as practicable :

- (3) They shall not be liable to pay to the Company any compensation for injury done to the tramway by the execution of such work or for loss of traffic occasioned thereby or for the reasonable exercise of the powers so vested in them as aforesaid :
- (4) Whenever for the purpose of enabling them to execute such work the local authority or the road authority shall so require the Company shall either stop the traffic on the tramway to which the notice shall refer where it would otherwise interfere with such work or shore up and secure the same at their own risk and cost during the execution of the work there Provided that such work shall always be completed by the local authority or road authority as the case may be with all reasonable expedition :
- (5) Any company body or person shall not execute such work so far as it immediately affects the tramway except under the superintendence of the Company unless they refuse or neglect to give such superintendence at the time specified in the notice for the commencement of the work or discontinue the same during the progress of the work and they shall execute such work at their own expense and to the reasonable satisfaction of the Company :

Provided that any additional expense imposed upon the corporation or the county council of Down by reason of the existence of the works of the Company in any street road or place where any such mains pipes tubes wires or apparatus shall have been laid before the construction of such works shall be borne by the Company.

Sanitary
authority to
have access
to sewers.

39. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Company and the provisions contained in the section of this Act of which the marginal note is " Rights of authorities and companies &c. to open roads " shall be applicable in the case of any sewer or private drain of or under the control of such sanitary authority as if the same were a pipe for the supply of gas or water.

40. The Company in constructing the tramroads may deviate from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown on those plans and may deviate from the levels thereof shown on the deposited sections to the extent and subject to the conditions prescribed in the case of a railway by sections 11 12 and 14 of the Railways Clauses Consolidation Act 1845.

A.D. 1904.

Power to deviate.

41. Notwithstanding anything contained in the provisions of the Railways Clauses Consolidation Act 1845 incorporated with this Act the Company shall not be bound to fence the line of any tramroad where the same is constructed on private land except when either before or within two years of the opening of such tramroad for public traffic the owner of any land adjoining the same shall by notice in writing require the Company to erect a fence or fences between the line of the tramroad and the land of such owner or any part thereof. Provided that if the fencing shall not be continuous throughout the whole of the line of the tramroad then cattle guards or other suitable contrivances shall where necessary be erected or constructed and maintained at the ends of the fencing so as to prevent cattle or horses from entering upon the tramroad.

As to fencing of tramroads.

42. Where any tramroad is laid upon land acquired by the Company at the side of any road the Company shall construct and maintain the same—

As to tramroads at side of road.

(A) So as to avoid to the reasonable satisfaction of the road authority any interference with the proper drainage of the road; and

(B) So as not to cut off convenient access across the tramroad from the road to any land thereto adjoining and the Company shall whenever necessary make and maintain metalled crossings and provide guard rails.

If any question arises under this section between the Company and the road authority or the owner or occupier of any such adjoining land that question shall be referred to arbitration under this Act.

43. If the tramways and tramroads are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for constructing the tramways and tramroads or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for completion of works.

A.D. 1904.

Inspection
by Board of
Trade.

44. The tramways and tramroads shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

MOTIVE POWER.

Provisions
as to motive
power.

45. The carriages used on the tramways and tramroads may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and tramroads and for regulating the use of electrical power :
- (3) The Company or any other company or person using any mechanical power on the tramways and tramroads contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

- (4) The Board of Trade if they are of opinion—

(A) That the Company or such other company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose

and the Company or such other company or person shall comply with every such order: A.D. 1904.

In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

46. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways or tramroads upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

Byelaws as to use of mechanical power.

For regulating the rate of speed to be observed in travelling upon the tramways and tramroads ;

For regulating the number of carriages which may be run upon the tramways and tramroads coupled together ;

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways and tramroads ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and tramroads and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways and tramroads by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

47. In the event of any of the Company's tramways or tramroads being worked by electricity or of electric power being supplied by the Company for any purpose the following provisions shall have effect :—

For protection of Post Office telegraph lines.

(1) The Company shall construct their electric lines and other works of all descriptions and shall work their

A.D. 1904.

undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration :

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working any of the Company's tramways or tramroads by electricity or for the supply of electrical power for any purpose is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the

A.D. 1904.

Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

A.D. 1904.

- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by arbitration under this Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways or tramroads of the Company.

Special provisions as to use of electrical power.

48. The following provisions shall apply to the use of electrical power on the tramways and tramroads under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas

or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return : A.D. 1904.

- (4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression " Company " in this section shall include any licencees and any person owning working or running carriages over any of the tramways or tramroads.

A.D. 1904.

FARES RATES AND CHARGES.

Traffic upon
tramways.

49. The tramways and tramroads may be used for the purposes of conveying passengers and parcels and also materials for use by the Company or for road repair.

Fares for
passengers.

50. The Company may demand and take for every passenger travelling upon the tramways and tramroads or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Company be bound to charge a less sum than two-pence. A list of all fares authorised to be so taken shall be exhibited in a conspicuous place inside each of the carriages used upon the tramways and tramroads.

Passengers'
luggage.

51. Every passenger travelling upon the tramways and tramroads may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and at the responsibility of the passenger and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Prohibiting
raising of fares
on Sundays
and holidays.

52. The Company shall not take or demand on Sunday or on any public holiday any higher fares or charges for passengers than those levied by them on ordinary week days.

Restrictions
not to apply
to special
carriages.

53. The restrictions contained in this Act as to fares and charges to be made for passengers shall not extend to any special carriages run upon the tramways or tramroads or to any special service of carriages on extraordinary occasions in respect of which the Company may take such fares and make such charges as they shall think fit but shall apply only to the ordinary carriages or service of carriages appointed from time to time by the Company for the conveyance of passengers on their tramways and tramroads.

Cheap fares
for labouring
classes.

54.—(1) The Company at all times after the opening of the tramways and tramroads for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday and bank holidays always excepted) at such hours not being later than eight in the morning or earlier than five in

the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance the Company nevertheless not being required to take any fare less than one penny On Saturdays the Company in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes. A.D. 1904

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to the Board to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

(4) The liability of the Company under any claim to compensation for injury or otherwise in respect of each passenger travelling by such carriages and at such fares as aforesaid shall be limited to a sum not exceeding one hundred pounds.

55. The Company may demand and take in respect of any parcels conveyed by them on the tramways and tramroads including every expense incidental to the conveyance any rates or charges not exceeding the following:— Parcels.

For any parcel not exceeding seven pounds in weight three-pence ;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence.

56. The Company shall not be bound unless they think fit to carry on the tramways or tramroads passengers' luggage exceeding the weight in this Act in that behalf mentioned nor any parcels or other things. Company not bound to carry animals goods &c.

57. If at any time after three years from the opening for public traffic of the tramways and tramroads or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways and Periodical revision of rates and charges.

A.D. 1904. tramroads or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the tramways and tramroads or such portion are or is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Company that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways and tramroads or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board such inquiry to be conducted in such manner as the said Board shall direct and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways and tramroads or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

CAPITAL &C.

Capital.

58. The capital of the Company shall be fifty-four thousand pounds in fifty-four thousand shares of one pound each.

Shares not
to be issued
until one-
fifth paid up.

59. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof.

Calls.

60. One-fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three-fourths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Receipt in
case of per-
sons not sui
juris.

61. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
divide shares.

62. Subject to the provisions of this Act the Company with the authority of three-fourths of the votes of the shareholders

present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any share in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not so divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole of the amount payable thereon) and the residue to the credit of the preferred half share.

A.D. 1904.

63. The dividend which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividend on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have from time to time been payable on the entire share if the same had not been divided.

Dividend on half shares.

64. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Dividend on preferred half shares to be paid out of profits of year only.

65. Forthwith after the creation of any half share the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share shall have been delivered to them to

Half shares to be registered and certificates issued.

A.D. 1904. be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it.

Terms of
issue to be
stated on
certificate.

66. The terms and conditions on which any preferred half share created under this Act is issued shall be stated on the certificate of each such half share.

Forfeiture of
preferred
half shares.

67. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest.

Preferred half
shares not to
be cancelled or
surrendered.

68. No preferred half share created under the authority of this Act shall be cancelled or surrendered to the Company.

Half shares
to be half
shares in
capital.

69. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

Power to
pay interest
out of capital
during con-
struction.

70. Notwithstanding anything in this Act or any Act or Acts incorporated herewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say) :—

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade

a statutory declaration by two of the directors and the secretary of the Company that two-thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same : A.D. 1904.

- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :
- (c) The aggregate amount to be so paid for interest shall not exceed four thousand five hundred pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

71. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole eighteen thousand pounds and of that sum the Company may borrow the amounts hereinafter stated in the events hereinafter prescribed that is to say when Tramroads Nos. 1 and 2 and Tramway No. 3 between the commencement thereof and Church Power to borrow.

A.D. 1904. Street Holywood shall have been constructed eight thousand pounds when Tramway No. 3 between the termination thereof and Church Street and Tramway No. 4 shall have been constructed five thousand pounds and when Tramway No. 5 and Tramroad No. 6 shall have been constructed five thousand pounds but no such borrowing powers shall be exercised by the Company until they have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that share capital has been bonâ fide issued and accepted to the extent following that is to say twenty-four thousand pounds in respect of the said sum of eight thousand pounds and fifteen thousand pounds in respect of each of the said sums of five thousand pounds and that not less than one half part of such portions of share capital respectively has been paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

For appointment of a receiver.

72. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture stock.

73. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which such stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application of moneys.

74. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

75. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of two thousand one hundred and eighty-nine pounds eighteen shillings being equal to five per centum upon the amount of the estimate in respect of the tramways and tramroads and street and road works authorised by this Act has been deposited with the Accountant-General for and on behalf of the Supreme Court in Ireland in respect of the application to Parliament for this Act and is referred to in this Act as "the deposit fund" Be it enacted that notwithstanding anything contained in the said Act the deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the tramways and tramroads open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways and tramroads the deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramways or tramroads for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways or tramroads opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the tramways or tramroads so opened bears to the entire length of the tramways and tramroads the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

A.D. 1904.

Deposit
money not to
be repaid ex-
cept so far as
tramways
are opened.

76. If the Company do not previously to the expiration of the period limited for the completion of the tramways and tramroads complete the same and open them for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the

Application
of deposit.

A.D. 1904.
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depositors shall be applicable and after due notice in the Dublin Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramroads or tramways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and also in compensating all road authorities for the expense incurred by them in taking up any tramway or tramroad or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramways or tramroads and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the deposit fund has been repaid to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall as and when the same become payable be paid to or on the application of the depositors.

Deposits for
future Bills
not to be
paid out of
capital.

77. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other tramway or tramroad or to execute any other work or undertaking.

First ordi-
nary meet-
ing.

78. The first ordinary meeting of the Company shall be held within eight months after the passing of this Act.

79. The number of directors shall be five but the Company may from time to time reduce the number of directors but so that the number shall never be less than three.

A.D. 1904.

Number of directors.

80. The qualification of a director shall be the possession in his own right of not less than two hundred shares.

Qualifications of directors.

81. The quorum of a meeting of directors shall be three.

Quorum.

82. Henry Harrison Robert Armstrong Mitchell Frank Workman and two other duly qualified persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for altering the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

First directors and election of directors.

MISCELLANEOUS.

83. For the protection of His Majesty's Principal Secretary of State for the War Department the following provisions shall unless otherwise agreed between the said Secretary of State and the Company have effect (that is to say) :—

For protection of War Department.

- (1) Notwithstanding anything in this Act contained or shown upon the deposited plans the Company shall not under the powers of this Act enter upon take or interfere with any lands belonging to the War Department without the consent in writing of the War Department other than the lands shown and coloured red

A.D. 1904.

on the plan signed in duplicate by the Right Honourable the Earl of Camperdown the Chairman of the Select Committee of the House of Lords to whom the Bill for this Act was referred one copy whereof has been deposited with the Clerk of the Parliaments House of Lords and the other copy in the Private Bill Office of the House of Commons :

- (2) In the event of the value of any land belonging to the War Department which the Company may acquire under the powers of this Act not being agreed upon the same shall be determined in manner provided by the Lands Clauses Acts :
- (3) Any land belonging to the War Department which the Company may acquire under the powers of this Act shall not be used by the Company for any purposes other than the purposes of this Act and in the event of any such land not being required for the purposes of this Act and becoming superfluous lands within the meaning of the Lands Clauses Consolidation Act 1845 the said Secretary of State shall have the right to purchase the same at a price to be agreed on or failing agreement to be settled by arbitration in manner provided by the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands :
- (4) The tramroads and tramways by this Act authorised where situate on or opposite to property of the War Department shall be worked subject to such regulations (if any) as the War Department may prescribe not being inconsistent with the Board of Trade regulations :
- (5) Where any tramway or tramroad constructed under the powers of this Act shall pass any land or building vested in or under the control of the said Secretary of State no crossing passing-place siding junction or work other than the tramway or tramroad shown on the deposited plans shall be constructed opposite to such land or building without the approval of the said Secretary of State or of an officer acting on his behalf and if at any time it shall in the opinion of the said Secretary of State be desirable that such crossing passing-place siding junction or other work shall be altered or removed the Company

shall alter or remove it to the satisfaction of the said Secretary of State within twenty-eight days from the time at which they are called upon to do so by notice in writing from such Secretary of State or officer: A.D. 1904.

- (6) The Company shall not permit any of their engines or carriages to stop or stand upon any tramway constructed under the powers of this Act opposite or near to the entrance to any lands or buildings vested in or under the control of the said Secretary of State in such manner as to interfere with the access to or from such lands or buildings.

84. For the protection and benefit of the corporation the following provisions shall unless otherwise agreed between the Company and the corporation have effect (that is to say):— For protection of corporation of Belfast.

- (1) The Company shall not without the consent of the corporation under their common seal commence to construct Tramroad No. 1 until the expiration of a period of twelve months from the passing of this Act:
- (2) The corporation may at any time within the said period of twelve months provided that they are then the owners of or have powers to purchase the tramway undertaking of the Belfast Street Tramways Company (including the tramway known as the Strandtown Tramway) give notice to the Company of their intention to make and work the said Tramroad No. 1 and if the corporation give such notice the powers of the Company for the construction and working of such tramroad shall cease (except as hereinafter provided) and the corporation shall construct and complete such tramroad concurrently with the construction and completion of the remainder of the tramways by this Act authorised from the termination of the said tramroad to Holywood and if such tramroad shall not be completed concurrently with or within six weeks after the completion of the remainder of the said tramways the Company may subject to the provisions of this section construct complete and work such tramroad notwithstanding that the corporation shall have given the notice aforesaid:
- (3) In the event of the said Tramroad No. 1 being constructed by the Company the corporation may purchase the

A.D. 1904.

same at any time within three years from the passing of this Act provided that they are then the owners of or have powers to purchase the tramways of the Belfast Street Tramways Company including the said Strandtown Tramway and the consideration to be paid for such purchase shall be the sum actually expended by the Company in constructing the said Tramroad No. 1 :

- (4) The said Tramroad No. 1 if constructed by the Company shall be constructed by them in such position within the limits of deviation shown upon the deposited plans as the corporation may require :
- (5) In the event of the Company constructing the said Tramroad No. 1 the following provisions shall have effect and apply to such part of the said tramroad which will be constructed on a street or road :—

(A) The Company shall not without the consent of the corporation open or break up at any one time a greater length than two hundred yards of any street or road which does not exceed a quarter of a mile in length and in the case of any street or road exceeding a quarter of a mile in length the Company shall leave an interval of at least a quarter of a mile between any two places at which they may open or break up the street or road and they shall not open or break up at any such place a greater length than two hundred yards ;

(B) The Company shall at their own expense at all times maintain and keep in good condition and repair and if required by the corporation pave and keep paved with such materials and in such manner as the corporation may reasonably require and to their reasonable satisfaction and under the supervision of the city surveyor of the corporation so much of any street or road whereon the said Tramroad No. 1 may be laid as lies between the rails thereof and (where the two lines of the said tramroad are laid at a distance of not more than four feet from each other) the portion of the street or road between such lines and in every case so much of the street or road as may extend two feet beyond the rails of and on both sides of each line

of the said tramroad and the Company shall be liable to a penalty not exceeding five pounds for every day on which they shall fail to so maintain and keep in good condition the said portions of street or road after seven days' notice in writing shall have been given to the Company by the corporation requiring them so to do ;

A.D. 1904.
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(c) All works which the Company may erect or place in or under or over any street or road in the city for working the said Tramroad No. 1 by electrical or mechanical power shall be of such nature and placed in such position as the corporation consistently with the proper working of the said tramroad may require ;

(d) The Company shall submit to the city surveyor detailed drawings and specifications of any works to be done in the roads under the jurisdiction of the corporation and shall execute the work in accordance with such plans and sections in the form approved by the city surveyor and to his reasonable satisfaction. No work shall be commenced in the city until the plans and specifications for such work have been approved by the city surveyor in writing ;

Provided that if the city surveyor does not approve or indicate his disapproval within fourteen days he shall be deemed to have approved thereof ;

(e) All materials used by the Company in executing re-paving and maintaining any works in the city shall be such as may have been previously approved of by the corporation or their surveyor :

- (6) The Corporation may use the said Tramroad No. 1 at such times and in such manner as will not interfere with the traffic of the Company or their lessees or any licencees and subject to the reasonable byelaws of the Company for the conveyance of scavenging stuff road metal and other materials required for their streets roads and works free of all tolls and

A.D. 1904.
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charges by the Company in respect of such use except for motive power and the Corporation may if they shall so determine or deem expedient provide and use their own carriages or wagons for such purposes. Provided always that all wagons used by the corporation or by any person in their employment on the said Tramroad No. 1 shall have flange wheels or wheels suitable to run on a grooved rail and shall be of a design and construction approved by the Company and the Company shall not be liable for any accidents damages and injuries arising from or occurring through the act or default of the servants of the corporation or of any person in their employment in connection with such use of the said Tramroad No. 1 by the corporation :

- (7) Nothing in this Act shall limit the power of the corporation to regulate the passage of any traffic along or across any street or road along or across which any part of the said Tramroad No. 1 is laid down and the corporation may exercise their authority as well on as off the said Tramroad No. 1 and with respect as well to the traffic of the Company or their lessees as to the traffic of other persons :
- (8) If the corporation construct or purchase the said Tramroad No. 1 they shall run a reasonably frequent service of cars over the said Tramroad No. 1 and the Company and the corporation may enter into agreements as hereinafter mentioned with respect to the working of the tramroads and tramways of the Company in connection with the said Tramroad No. 1 :
- (9) In the event of the corporation constructing or acquiring the said Tramroad No. 1 it shall form part of their tramway undertaking for all purposes :
- (10) Any difference between the corporation and the Company under this section shall be referred to arbitration under this Act.

For protection of Down
County
Council.

85. The following provisions for the protection of the county council of the administrative county of Down (in this section called "the county council") and the inhabitants of the said county shall notwithstanding anything in this Act

contained and unless otherwise agreed in writing between the county council and the Company apply and have effect:— A.D. 1904.

- (1) Before any tramway or tramroad by this Act authorised to be laid in or along any road under the control of the county council or repairable wholly or partially at their expense is opened for public traffic the Company shall at their own expense widen such road along which such tramway or tramroad shall be laid to a width throughout so as to provide on each side of the road where any such tramway or tramroad is laid as a single line (and on one side of the road to be specified by the county surveyor where any such tramway or tramroad is laid as a double line) a width of metalled carriageway between the footpath or the edge of the road and the nearest rail of such tramway or tramroad of not less than nine feet six inches. Provided that in the urban district of Hollywood where any part of the tramway is laid as a double line there shall be a width of not less than ten feet between the edge of the footpath and the nearest rail of the tramway on one side of the road to be specified by the county surveyor. In the event of it being necessary for the purposes of laying down any tramway or tramroad or for widening such road to take use or in any manner interfere with any wastes or margins along any such road the Company shall make full compensation to the county council therefor. Any difference or dispute between the Company and the county council which may arise as to any such compensation shall be determined by arbitration under this Act:
- (2) Where the tramways or tramroads are constructed so as to allow a space of less than nine feet six inches to intervene between the outer rail and the edge of the footpath the Company shall at their own expense where footways along the roads are not already made formed and properly kerbed form and properly kerb to the satisfaction of the county surveyor footways for the full length of such road along which any of the tramways or tramroads pass and the Company shall also pave or metal as the case may be the widened portion of the carriageway and footpath (if any) with the same class of pavement or metalling as existed before the widening was made:

A.D. 1904.

- (3) A double line of rails shall not be laid where a single line is shown on the deposited plans on any road under the control of the county council or repairable wholly or partially at their expense without the reasonable approval of the county surveyor :
- (4) The Company shall at their own expense and to the satisfaction of the county council keep in repair so much of any road repairable by or under the control of the county council whereon any of the tramways or tramroads are laid as lies between the rails of the tramway or tramroad and (where two lines of tramway or tramroad are laid by the Company in any such road) the portion of the road between such two lines of tramway or tramroad and in every case so much of the road as extends one foot and six inches beyond the rails of and on each side of any such tramway or tramroad with such materials as may be agreed upon between the Company and the county council or in default of agreement as may be determined by arbitration under this Act :

Provided that the Company shall unless otherwise agreed in writing between the Company and the county council and the Hollywood Urban District Council pave with square setts so much as aforesaid of the roadway whereon Tramway No. 3 shall be laid :

- (5) Nothing herein contained shall tend to lessen or control any right power or authority now vested in the county council for altering or widening any road repairable by or under their control but all such rights powers and authorities shall remain in as full force as if this Act had not been passed and the county council shall not be liable to make any compensation whatever for any damage or injury to the tramway or tramroad by the altering or widening of any such road Provided that in altering or widening any such road the county council may require the Company to alter their posts and overhead equipment in such manner as the circumstances of the case may reasonably require but nothing shall be done to impede or interfere with the tramway or tramroad for any greater length of time than may be reasonably necessary for the execution of the works :

- (6) The Company shall not execute any work in or affecting or otherwise interfere with any such road as aforesaid otherwise than subject to such regulations and conditions for the accommodation of traffic and otherwise as the county council may from time to time prescribe : A.D. 1904.
- (7) The Company shall not make any alteration in the level of any of the roads repairable by or under the control of the county council without the consent of the county council and any such alteration consequent upon the construction of the tramway or tramroad to which the county council shall consent shall if the county council so desire be made by the county council and the reasonable costs of so doing shall be borne and upon demand paid by the Company :
- (8) The Company shall on demand pay to the county council the reasonable costs which may be incurred in the repair and reinstatement of so much of any such road (including the roadway over any bridge and approach) upon or along which any tramway or tramroad shall be laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of such tramway or tramroad :
- (9) No sewer drain channel pipe tube wire or apparatus belonging to or under the control of the county council shall be raised sunk or otherwise altered or interfered with except with the consent of the county council and to the satisfaction of the county surveyor but such consent shall not be unreasonably withheld :
- (10) All works which the Company may erect or place in or under or over any street or road for working the tramways by electrical or mechanical power shall be of such nature and placed in such position as the county council consistently with the proper working of the said tramway may require :
- (11) The Company shall submit to the county surveyor detailed drawings and specifications of any works to be done in or in respect of the roads under the jurisdiction of the county council and shall execute the work in accordance with such plans and sections

A.D. 1904.

in the form reasonably approved by the county surveyor and to his reasonable satisfaction. No work shall be commenced until the plans and specifications for such work have been reasonably approved by the county surveyor in writing. Provided that if the county surveyor does not approve or indicate his disapproval within fourteen days he shall be deemed to have approved thereof:

(12) If the Company fail to comply in any respect with the provisions of this section they shall for every such offence (without prejudice to the enforcement by specific performance of the requirements of this Act or to any other remedy against them) be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day during which any such failure continues after the first day on which such penalty is incurred and any such penalty shall go and belong to the county council and shall form part of the funds applicable to the maintenance and repair of roads under the control of the county council:

(13) If any question (except such as is to be determined by the Board of Trade as hereinbefore provided) arises under this section between the Company and the county council that question shall be referred to arbitration under this Act.

Agreements
with local
authorities
as to supply
of electric
power.

86. The Company on the one hand and any local authority or company authorised by Act of Parliament or Provisional Order to supply electricity in whose area of supply any portion of the tramways or tramroads by this Act authorised or of any tramways tramroads or light railways of or leased to or worked or run over or used by the Company is are or will be situate on the other hand may enter into and carry into effect agreements for or with respect to all or any of the following purposes and all matters incidental thereto (that is to say):—

(1) The supply to the Company by any such local authority or company of electrical energy for working any of such tramways tramroads or light railways which may for the time being be worked by the Company by electrical power under the provisions of this Act or otherwise whether such tramways tramroads or

light railways are or are not partly situate beyond the area of supply of such authority or company: A.D. 1904

- (2) The supply to any such local authority or company by the Company of electrical power for any purpose for which such authority or company are for the time being authorised to supply the same:
- (3) The payments to be made or other consideration to be given in respect to any such supply of energy.

87. Whereas certain mains pipes services and other works belonging to and now in use by the commissioners acting in execution of the Belfast Water Acts 1840 to 1903 (and who are hereinafter called "the water commissioners") for the purpose of their water supply are laid in under or across certain of the roads streets or lands along or across which the tramways tramroads and works or some part thereof respectively are proposed to be made and maintained And whereas it is expedient that provision should be made for preventing any interruption of the supply of water by the water commissioners within their limits of supply and with respect to the laying additional mains pipes services and other works under over and across the roads streets or lands over along or across which the tramways tramroads and works are proposed to be made and maintained Therefore the following provisions shall apply for the protection of the water commissioners in lieu of the provisions of the section of this Act whereof the marginal note is "Provisions as to gas and water companies" (that is to say):—

For protec-
tion of Bel-
fast Water
Commis-
sioners.

- (1) All works matters or things which the Company may be empowered or required to do or execute with reference to the mains pipes services and other works of the water commissioners shall be done and executed by and at the expense of the Company but to the reasonable satisfaction of the engineer for the time being of the water commissioners Such works matters or things shall not be commenced until after fourteen days' notice thereof in writing accompanied by a plan of the proposed works shall have been given by the Company to the water commissioners and if the water commissioners by notice in writing to the Company within seven days after the receipt by them of the notice of the intended commencement by the Company of any such

A.D. 1904.

work matter or thing require that the water commissioners shall by their own engineer or workmen do or execute such work matter or thing the water commissioners may on the expiration of the first-mentioned notice do or execute the same and the Company shall on the completion thereof pay to the water commissioners the reasonable expenses incurred by them in the execution thereof:

- (2) If any interruption whatsoever in the supply of water by the water commissioners shall be in any way occasioned by the Company or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall forfeit and pay on demand to the water commissioners for the use and benefit of the water commissioners the sum of twenty pounds for every day during which such interruption shall continue:
- (3) The expense of all repairs or renewals of any main pipe or service of the water commissioners or any works in connection therewith which may at any time hereafter be rendered necessary by the acts or default of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them shall be borne and paid by the Company and may be recovered against them by the water commissioners:
- (4) If and when the Company under the powers of this Act acquire and appropriate any lands houses and buildings which are served with water by the mains pipes services or works of the water commissioners laid down and maintained by them in any road street highway or place or stop up any such road street highway or place so that the same mains pipes services and works or any of them or any parts thereof respectively become useless for supplying water the Company shall at their own expense take up such mains pipes services and works or such parts thereof respectively as shall so become useless and shall deliver the same to the water commissioners in as good a condition as such mains pipes services and works were in before they were taken up or interfered with:

- (5) The water commissioners shall not be liable for any loss or damage which may happen to the tramways tramroads or works or appurtenances connected therewith or to the passengers conveyed upon the tramways or tramroads by reason of any accident which may at any time happen to the now existing mains pipes services or other works of the water commissioners at under or near the tramways or tramroads nor for any loss or damage to the company arising from the stoppage or loss of traffic on the tramways or tramroads during the repair of the said mains pipes services or other works which may be necessary in consequence of such accident unless such loss or damage shall have been occasioned by the default or neglect of the water commissioners or of their agents officers workmen or servants : A.D. 1904.
- (6) Nothing in this Act shall prevent the water commissioners from laying at their own expense from time to time as they may think fit such additional mains or pipes with all scour pipes and air and other valves for supplying water as they are now authorised to lay or from altering diverting repairing or from time to time inspecting any of their now authorised mains pipes services or other works at under over across or near the tramways or tramroads and the water commissioners shall not be liable for any damage to the tramways tramroads or works connected therewith or for any stoppage of the tramways or tramroads or loss of traffic thereon that may be caused by the laying repairing or inspecting of any mains pipes services or other works at under over across or near the tramways or tramroads Provided that the operations of the water commissioners shall be carried on so as to interfere as little as possible with the traffic on the tramways or tramroads and so far as they affect the tramways or tramroads according to the directions and under the superintendence of the engineer for the time being of the Company :
- (7) The Company shall be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants by reason of or in consequence

A.D. 1904:

of any of the Company's works and shall save harmless the water commissioners their officers and servants from all damages and costs in respect of such accidents damages and injuries :

- (8) Except as in this Act specially provided nothing in this Act shall prejudice diminish alter or take away any of the rights privileges powers or authorities of the water commissioners :
- (9) If any difference shall arise between the Company or their engineer and the water commissioners or their engineer with respect to the amount of any costs expenses or charges under the provisions of this Act or any Act incorporated therewith to be paid by the Company to the water commissioners or with respect to any work matter or thing with reference to the mains pipes services or other works of the water commissioners under such provisions to be done or executed by the Company or the water commissioners or the mode of doing or executing the same such difference shall be settled by arbitration under this Act.

Working
agreements
with cor-
poration.

88. The Company on the one hand and the corporation on the other hand may enter into and carry into effect agreements for all or any of the following matters and all matters incidental thereto (that is to say) :—

- (1) The running over and use by the contracting parties of all or any of their respective tramways tramroads and works or any part or parts thereof respectively ;
- (2) The making of all necessary junctions ;
- (3) The supply by any of the contracting parties to the other of them under and during the continuance of any such agreement of electrical energy or any motive power necessary for the purposes of such agreement ;
- (4) The payments to be made and conditions to be performed in respect of such running over and use and the interchange accommodation and conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties ;

- (5) The payment collection division and apportionment of A.D. 1904.
the tolls rates or other receipts arising from the
respective undertakings

And in accordance with the terms of any such agreement and to the extent provided thereby the Company or the corporation as the case may be may run over and use the tramway tramroad or works agreed to be run over and used by them and shall have and may exercise in relation thereto all such and the like powers rights authorities and privileges as are for the time being vested in or exercisable by the owner thereof.

89. Where any of the tramways or tramroads have been opened for traffic for a period of six months the Company may with the consent of the Board of Trade sell their undertaking to any company or person and when any such sale has been made all the rights powers authorities obligations and liabilities of the Company in respect to the undertaking sold shall be transferred to vested in and may be exercised by and shall attach to such company or person. Power of sale.

90. If at any time after the opening of any tramway or tramroad laid upon a road the Company discontinue the working of such tramway or tramroad or of any part thereof for the space of three calendar months (such discontinuance not being occasioned by circumstances beyond the control of the Company for which purpose the want of sufficient funds shall not be considered a circumstance beyond their control) and such discontinuance is proved to the satisfaction of the Board of Trade the said Board if they think fit may by order declare that the powers of the Company in respect of such tramway or tramroad or the part thereof so discontinued shall from the date of such order be at an end and thereupon the said powers of the Company shall cease and determine Where any such order has been made the road authority of such district may at any time after the expiration of two months from the date of such order under the authority of a certificate to that effect by the Board of Trade remove the tramway or tramroad or part thereof so discontinued and the Company shall pay to the road authority the cost of such removal and of the making good of the road by the road authority such cost to be certified by the clerk for the time being or by some other authorised officer of the road authority whose certificate shall be final and conclusive and if the Company fail to pay the amount so certified within one Tramways to be removed in certain cases.

A.D. 1904. — calendar month after delivery to them of such certificate or a copy thereof the road authority may without any previous notice to the Company (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the tramway or tramroad or part of the tramway or tramroad removed either by public auction or private sale and for such sum or sums and to such person or persons as the road authority may think fit and may out of the proceeds of such sale pay and reimburse themselves the amount of the cost certified as aforesaid and of the cost of sale and the balance (if any) of the proceeds of the sale shall be paid over by the road authority to the Company.

Company
may make
regulations
and bye-
laws.

91.—(1) Subject to the provisions of this Act the Company may from time to time make regulations—

- (A) For preventing the commission of any nuisance in or upon any carriage or in or against any premises belonging to them ;
- (B) For regulating the travelling in or upon any carriages belonging to them ;
- (C) For preventing the obstruction of the Company in constructing repairing working and using the tramways or tramroads or any vehicle used thereon ;
- (D) For preventing persons travelling upon the tramways or tramroads from practising frauds upon the Company by neglect or refusal to pay their fare and for the detention of any person whose name or residence is unknown to the Company and who practises or attempts to practise any such fraud :

And for better enforcing the observance of all or any of such regulations it shall be lawful for the Company to make byelaws for all or any of the aforesaid purposes and from time to time repeal or alter such byelaws and make new byelaws provided that such byelaws be not repugnant to the general law of Ireland.

(2) Notice of the making of any byelaw under the provisions of this Act shall be published by the Company by advertisement once at least in each of two successive weeks in some one and the same local newspaper circulating in the district affected by such byelaw and unless such notice is published in manner aforesaid such byelaw shall be disallowed by the Board of Trade.

(3) No such byelaw shall have any force or effect which shall be disallowed by the Board of Trade within two calendar months after a true copy of such byelaw shall have been laid before the Board and a true copy of every such proposed byelaw shall not less than two calendar months before such byelaw shall come into operation be sent to the Board of Trade.

A.D. 1904.
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92. Any such byelaw may impose reasonable penalties for offences against the same not exceeding forty shillings for each offence with or without further penalties for continuing offences not exceeding for any continuing offence ten shillings for every day during which the offence continues but all byelaws shall be so framed as to allow in every case part only of the maximum penalty being ordered to be paid.

Penalties
may be
imposed in
byelaws.

93. No person shall be entitled to carry or to require to be carried on the tramways or tramroads any goods which may be of a dangerous nature and if any person send by the tramways or tramroads any such goods without distinctly marking their nature on the outside of the package containing the same or otherwise giving notice in writing to the book-keeper or other servant with whom the same are left at the time of such sending he shall be liable to a penalty not exceeding twenty pounds for every such offence and the Company may refuse to take any parcel that they may suspect to contain goods of a dangerous nature or require the same to be opened to ascertain the fact.

Penalty for
bringing
dangerous
goods on the
tramways or
tramroads.

94. If any person (except under a lease from or by agreement with the Company) uses the tramways or tramroads or any part thereof with carriages having flange wheels or other wheels suitable only to run on the rails of the tramways or tramroads such person shall for every such offence be liable to a penalty not exceeding twenty pounds.

Penalty for
persons using
tramways or
tramroads
with carriages
with flange
wheels &c.

95. All tolls penalties and charges under this Act or under any byelaw made in pursuance of this Act may be recovered and enforced in manner directed by the Summary Jurisdiction Acts before a court of summary jurisdiction.

Recovery of
tolls penal-
ties &c.

96. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Recovery
of demands
under fifty
pounds.

A.D. 1904.

Right of user
only of road.

97. Notwithstanding anything in this Act contained the Company shall not acquire or be deemed to acquire any right other than that of user of any road along or across which they lay any tramway or tramroad.

Reserving
powers of road
authorities to
widen &c.
roads.

98. Nothing in this Act shall take away or affect any power which any road authority may have to widen alter divert or improve any road.

Reservation
of right of
public to use
roads.

99. Nothing in this Act or in any byelaw made under this Act shall take away or abridge the right of the public to pass along or across every or any part of any road along or across which any tramway or tramroad is laid whether on or off the tramway or tramroad with carriages not having flange wheels or wheels suitable only to run on the rails of the tramway.

Company
responsible
for all
damages.

100. The Company shall be answerable for all accidents damages and injuries happening through their act or default or through the act or default of any person in their employment by reason or in consequence of any of their works or carriages and shall save harmless all road and other authorities companies or bodies collectively and individually and their officers and servants from all damages and costs in respect of such accidents damages and injuries.

Consents of
local or road
authority.

101. Where the consent of any local or road authority is by this Act or any Act incorporated therewith required before the exercise of any powers by the Company such consent shall not be unreasonably withheld and if any difference arises as to whether any consent is unreasonably withheld that difference shall be referred to arbitration under this Act.

Orders &c.
of Board of
Trade.

102. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Arbitration.

103.—(1) Where any difference is to be referred to or determined by arbitration under this Act that difference shall be referred to the Board of Trade or if the Board of Trade think fit to an engineer or other fit person appointed as arbitrator by the Board.

(2) The provisions of the Common Law Procedure Amendment Act (Ireland) 1856 shall so far as they are applicable apply to such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of

and incident to the arbitration shall be in the discretion of the arbitrator who may order to and by whom and in what manner the same or any part thereof shall be paid and if either party so requires such costs shall be taxed and settled by any one of the taxing masters of the High Court in Ireland and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to fees to be taken in the office of such masters and all these enactments including enactments relating to the taking of fees by means of stamps shall extend to the fees in respect of the said taxation. A.D. 1904.
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104. Save as expressly provided nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Saving
rights of
Crown.

105. Nothing in this Act contained shall exempt the Company or the tramways or tramroads of the Company from the provisions of any general Act relating to tramways or tramroads passed after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act. Provision as
to general
Acts.

106. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1904.**SCHEDULE** referred to in the foregoing Act.

A plot of ground one acre one rood twenty-five poles or thereabouts in extent situate in the parish townland and urban district of Holywood in the county of Down abutting on Sullivan Place High Street and the private road on the south side of Sullivan Place.

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